1. If a member goes out of his/her party as a result of a merger of the party with another party. A merger takes place when two-thirds of the members of the party have agreed to such merger.

2. If a member, after being elected as the presiding officer of the House, voluntarily gives up the membership of his/her party or rejoins it after he/she ceases to hold that office. This exemption has been provided in view of the dignity and impartiality of this office.

It must be noted here that the provision of the Tenth Schedule pertaining to exemption from disqualification in case of split by one-third members of the legislature party has been deleted by the 91st Amendment Act of 2003. It means that the defectors have no more protection on grounds of splits.

3. Deciding Authority

Any question regarding disqualification arising out of defection is to be decided by the presiding officer of the House. Under the act, there is no time-limit for him/her to decide such a case. Originally, the act provided that the decision of the presiding officer is final and cannot be questioned in any court. However, in *Kihoto Hollohan* case[2] (1992), the Supreme Court declared this provision as unconstitutional on the ground that it seeks to take away the jurisdiction of the Supreme Court and the high courts. It held that the presiding officer, while deciding a question under the Tenth Schedule, function as a tribunal. Hence, his/her decision like that of any other tribunal, is subject to judicial review on the grounds of *mala fides*, perversity, etc. But, the court rejected the contention that the vesting of adjudicatory powers in the presiding officer is by itself invalid on the ground of political bias[3].

4. Rule-Making Power

The presiding officer of a House is empowered to make rules to give effect to the provisions of the Tenth Schedule. All such rules must be placed before the House for 30 days. The House may approve or modify or disapprove them. Further, he/she may direct that any willful contravention by any member of such rules may be dealt with in the same manner as a breach of privilege of the House.

According to the rules made so, the presiding officer can take up a defection case only when he/she receives a complaint from a member of the House. Before taking the final decision, he/she must give the member (against whom the complaint has been made) a chance to submit his/her explanation. He/she may also refer the matter to the committee of privileges for inquiry. Hence, defection has no immediate and automatic effect.

EVALUATION OF THE ACT

The Tenth Schedule of the Constitution (which embodies the anti-defection law) is designed to prevent the evil or mischief of political defections motivated by the lure of office or material benefits or other similar considerations. It is intended to strengthen the fabric of Indian parliamentary democracy by curbing unprincipled and unethical political defections. Rajiv Gandhi, the then Prime Minister, described it as the 'first step towards cleaning-up public life'. The then Central law minister stated that the passing of the 52nd Amendment Bill (anti-defection bill) by a unanimous vote by both the Houses of Parliament was 'a proof, if any, of the maturity and stability of Indian democracy'.

 **Advantages**

The following can be cited as the advantages of the anti-defection law: